

Act of the Colony of Queensland.

The Parliament of the Commonwealth Elections Act and the Elections Acts, 1885 to 1898, Amendment Act of 1900 (No. 25 of 1900).

Acts of the Colony of Western Australia.

An Act to correct certain errors in the Constitution Acts Amendment Act, 1899 (No. II. of 1900).

The Constitution Act Amendment Act, 1900 (No. V. of 1900).

CHAPTER 30.

An Act to extend the Purchase of Land (Ireland) Amendment Act, 1889. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The Purchase of Land (Ireland) Amendment Act, 1889, as amended by any enactment, shall, subject to the provisions of this Act, apply with the necessary modifications in the case of a tenant desirous of purchasing land, notwithstanding that the sale of his holding is not about to be made under the Land Purchase Acts. Extension of
52 & 53 Vict.
c. 13.

2.—(1.) Where a tenant to whom an advance is made in pursuance of this Act is the proprietor of a holding charged with an annuity under the Land Purchase Acts, an account shall be taken of the amount outstanding in respect of the original advance, and the original holding and any additional parcel of land purchased under this Act shall be deemed one holding and shall be charged with a new annuity for the repayment of such outstanding amount together with the amount of the advance made in respect of such additional parcel and shall be discharged from the annuity payable in respect of the original advance. Provision
where tenant
is a tenant
purchaser
under the
Purchase Acts.

(2.) An annuity payable in pursuance of this section shall continue for such term of years as the Land Commission, on the application of the purchaser, may determine.

3. This Act may be cited as the Purchase of Land (Ireland) Act, 1901. Short title.

CHAPTER 31.

An Act to provide for the Construction and Working of a Submarine Cable from the Island of Vancouver to New Zealand and to Queensland. [17th August 1901.]

WHEREAS it is expedient to provide for the construction of a submarine cable (in this Act called the Pacific cable) from the Island of Vancouver on the west coast of the Dominion of

Canada to Norfolk Island in the Pacific Ocean and thence by means of two cables to New Zealand and to Queensland respectively at an estimated cost of two million pounds :

And whereas it has been arranged that any sum required for the repayment of any money borrowed under this Act and for the annual expenses of the cable (including interest at the rate of three per cent. on borrowed money) shall (so far as not covered by receipts) be ultimately provided, as to five-eighteenthths thereof, by His Majesty's Government and, as to thirteen-eighteenthths thereof, by the Governments of Canada, of the States of New South Wales, Queensland and Victoria and of New Zealand (in this Act referred to as the Colonial Governments), and that any profits arising from the cable shall be divided between His Majesty's Government and the Colonial Governments in the same proportion :

And whereas it is expedient to make provision with respect to the construction and working of the cable by a board of management to be called the Pacific Cable Board :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Issue of money
out of Con-
solidated Fund
for purposes
of Act.

1. The Treasury shall, as and when they think fit, issue out of the Consolidated Fund or the growing produce thereof such sums, not exceeding in the whole the sum of two million pounds, as may be required by the Pacific Cable Board for defraying the costs of the construction of the Pacific cable and for the repayment of any temporary loan raised for the purpose of the cable before the passing of this Act.

Borrowing for
purposes of
Act.

2.—(1.) The Treasury may, if they think fit, at any time borrow money for the purpose of providing for the issue of sums out of the Consolidated Fund under this Act or repaying to that fund all or any part of the sums so issued, and all sums so borrowed shall be paid into the Exchequer.

(2.) Any sums so borrowed shall, during the construction of the Pacific cable, bear interest at the rate of three per cent. per annum and, after construction, shall be repaid with interest at the same rate by means of terminable annuities for such period, not exceeding fifty years from that time, as the Treasury fix.

(3.) The principal of, and interest on, any money so borrowed and, after construction, the annuities created for the purpose of the repayment of that money shall, unless otherwise provided for, be charged on, and paid out of, the Consolidated Fund or the growing produce thereof.

Annual
expenses of
cable.

3.—(1.) The amount required in each year for the annual expenses of the Pacific cable, including any such expenses incurred before the passing of this Act, shall be defrayed out of the receipts arising in connection with the cable and, so far as those receipts are not sufficient, out of moneys provided by Parliament.

(2.) For the purposes of this Act the annual expenses of the Pacific cable include any sums required for the payment of interest

on money borrowed for the purposes of this Act (including the interest on any temporary loan raised for the purpose of the cable before the passing of this Act) or for the payment of annuities created under this Act and any expenses of the Pacific Cable Board or other expenses properly incurred in working or maintaining the cable.

(3.) Such sums as are received from any colonial government on account of the annual expenses of the Pacific cable shall be paid into the Exchequer.

4. If in any year the receipts arising in connection with the Pacific cable exceed the amount required for the annual expenses of the cable as herein-before defined, the surplus shall be applied, in such manner as the Treasury direct, in reduction of any sums outstanding on account of money borrowed under this Act, and, if there is no such sum outstanding, thirteen-eighteenths of the surplus shall be paid to the Colonial Governments, and the residue shall be dealt with as the Treasury determine. Application of profits.

5. Any sums available for the payment of interest on money borrowed under this Act or of annuities created under this Act and any sums available as surplus under this Act shall be paid over by the Pacific Cable Board in such manner and at such times as the Treasury direct. Payments, by board of management.

6.—(1.) The construction and working of the Pacific cable shall be under the control and management of a board constituted in manner provided by the schedule to this Act and called the Pacific Cable Board, and the cable and all property used for and in connection with the cable and any rights and obligations under any contract for or in connection with the construction of the cable entered into before the passing of this Act shall be vested in, and be rights and obligations of, the Board. Pacific Cable Board.

(2.) The provisions of the schedule to this Act shall apply with respect to the constitution and proceedings of the Pacific Cable Board.

7. The Pacific Cable Board shall in every financial year cause to be made out an account, in such form as the Treasury require, of the money received, expended and borrowed and of the securities created under this Act, and that account shall be audited in manner directed by the Treasury and laid before Parliament. Accounts and audit.

8. This Act may be cited as the Pacific Cable Act, 1901. Short title.

SCHEDULE.

Section 6.

PROVISIONS AS TO THE CONSTITUTION AND PROCEEDINGS OF THE PACIFIC CABLE BOARD.

1. The Pacific Cable Board shall consist of—

- Three members representing His Majesty's Government ;
- Two members representing the Government of Canada ;
- Two members representing the Governments of the States of New South Wales, Victoria and Queensland ; and
- One member representing the Government of New Zealand.

2. The first members of the Board shall be—

Sir Spencer Walpole, K.G.B. (Chairman)	-	}	representing His Majesty's Government.
G. E. Y. Gleadowe, Esq., C.M.G.	-		
W. H. Mercer, Esq.	-		
Lord Strathcona and Mount Royal, G.C.M.G.	-	}	representing the Government of Canada.
Alexander Lang, Esq.	-		
Hon. Henry Copeland	-	}	representing the Governments of New South Wales, Victoria and Queensland.
Hon. Sir Andrew Clarke, G.C.M.G.	-		
Hon. W. P. Reeves	-	}	representing the Government of New Zealand.

3. The Pacific Cable Board shall be a body corporate by that name, with perpetual succession and a common seal and with power to purchase, take, hold and dispose of lands and other property for the purposes of this Act.

4. Any vacancy occurring in the office of the members representing His Majesty's Government, by reason of death, resignation, incapacity or otherwise, shall be filled by the Treasury; and any such vacancy in the office of the representatives of any of the Colonial Governments shall be filled by the Government or Governments which the member whose office is vacant represented.

5. The Treasury may appoint a member of the Board to be chairman of the Board, and, so long as the chairman does not hold any office of profit under the Crown or under any Colonial Government, there shall be paid to him such salary, not exceeding six hundred pounds a year, as the Treasury direct.

6. The Board may appoint such officers and employ such persons and take such other steps as they think necessary and expedient for properly carrying out their duties and may provide an office for the transaction of their business.

7. The Board may regulate their proceedings in such manner as they think fit, but on any matter on which the votes of the Board are equally divided the person presiding at the Board shall have a second or casting vote, and the quorum of the Board shall be three.

8. The Board may act notwithstanding any vacancy in their number.

CHAPTER 32.

An Act to amend the Law with respect to Customs
Duties in the Isle of Man. [17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :